

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 512

BY BUSINESS COMMITTEE

AN ACT

RELATING TO ENGINEERS AND SURVEYORS; AMENDING SECTION 54-1208, IDAHO CODE,
TO PROVIDE FOR THE BOARD TO DETERMINE AND ADMINISTER AN APPROPRIATE OPEN
BOOK JURISPRUDENCE EXAM FOR THE LICENSING OF SURVEYORS; AND DECLARING
AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 54-1208, Idaho Code, be, and the same is hereby
amended to read as follows:

54-1208. BOARD -- POWERS. (1) The board shall have the power to adopt
and amend administrative rules including, but not limited to, rules of pro-
fessional responsibility, rules of continuing professional development
not to exceed sixteen (16) hours annually for each profession for which the
professional is licensed, and rules of procedure, not inconsistent with the
constitution and laws of this state, which may be reasonably necessary for
the proper performance of its duties and the administration of the chapter
and the regulation of proceedings before the board. These actions by the
board shall be binding upon persons licensed under this chapter and shall be
applicable to business entities holding a certificate of authorization as
provided in section 54-1235, Idaho Code. It shall adopt and have an official
seal which shall be affixed to each license and certificate issued. It shall
have power to provide an office, office equipment and facilities and such
books and records as may be reasonably necessary for the proper performance
of its duties.

(2) In carrying into effect the provisions of this chapter, the board
may subpoena witnesses and compel their attendance, and also may require the
submission of books, papers, documents, or other pertinent data in any dis-
ciplinary matters or in any case wherever a violation of this chapter is al-
leged. Upon failure or refusal to comply with any such order of the board, or
upon failure to honor its subpoena as herein provided, the board may apply to
any court of any jurisdiction to enforce compliance with same.

(3) The board is hereby authorized in the name of the state to apply for
relief by injunction in the established manner provided in cases of civil
procedure, without bond, to enforce the provisions of this chapter or to re-
strain any violation thereof. Venue for all such actions shall be in the dis-
trict court of the fourth judicial district, Ada county, Idaho.

(4) The board may subject an applicant for licensure or certification
to such examination as it deems necessary to determine qualifications.
Notwithstanding the provisions of section 67-9409, Idaho Code, the board
shall determine and administer an appropriate open book jurisprudence exam
for the licensing of surveyors pursuant to this chapter.

(5) Any action, claim or demand to recover money damages from the board
or its employees which any person is legally entitled to recover as compensa-

1 tion for the negligent or otherwise wrongful act or omission of the board or
2 its employees, when acting within the course and scope of their employment,
3 shall be governed by the Idaho tort claims act, chapter 9, title 6, Idaho
4 Code. For purposes of this section, the term "employees" shall include, in
5 addition to those persons listed in section 6-902(4), Idaho Code, special
6 assignment members, emeritus members and any independent contractors while
7 acting within the course and scope of their board related work.

8 (6) The board may recommend arbitration of disputes between profes-
9 sional engineers or disputes between professional land surveyors.

10 SECTION 2. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.